

with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement, filed on 11/1/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,299,68, plus costs, less any credits for payments received.

The Defendant made payments of \$1,848.00.

Costs are \$583.61. A memo on costs was filed 11/20/25.

The Stipulated Agreement was filed 11/1/24.

A dismissal was entered on 12/10/24.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,035.26.

Plaintiff to file order on Motion, as well as submit Judgment.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

5. 9:00 AM CASE NUMBER: L24-08569
CASE NAME: WELLS FARGO BANK, N.A. VS. ANA GUANZON
HEARING ON SUMMARY MOTION MSJ BY WELLS FARGO ON 5/19/25 - CONTINUED ON 10/7/25
FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration and a Separate Statement of Undisputed Material Facts. Defendant filed papers in opposition, including an opposition to the Separate Statement, a Declaration, and objections to the Declaration filed by Plaintiff.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex*

rel. Dept. of Transportation (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first rules on the Defense’s objection to Plaintiff’s declaration of Jason Gill. The court finds that the records that were submitted as Exhibit One do qualify as an exception to hearsay under the Business Records Exception. Mr. Gill declared that he

was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence. In addition, statements about the custom and practice of Wells Fargo, such as their practice of mailing Customer Agreements to consumers, as well as the fact that accounts cannot be used unless cards are activated by the cardholder, are admitted.

However, any statements by Mr. Gill in the declaration that rely on the observation of any records not contained in the Exhibit run afoul of Evidence Code Section 1523 and will be excluded. This would consist of any statements by Mr. Gill where he indicates that he observed any particular records or applications in the matter that were not included in the Exhibit.

Next, the court evaluates whether Plaintiff has made a *prima facie* showing of a Breach of Contract.

Plaintiff has provided credit card billing statements, purportedly for the account ending 8379, that appear to be addressed to Defendant. There are hundreds of pages. Some of these pages, such as those from year 2023, reflect purchases. One of the final billing statements, from 2024, reflects a total balance of around \$9,421.

These exhibits, coupled with the declaration of Mr. Gill, establish a *prima facie* showing for Breach of Contract. There is evidence of an implied contract in that an agreement was mailed to Defendant, and she then, with knowledge of the terms, activated and used the card for purchases. The billing statements reflect that Defendant did not repay the money that was given to her for the purchases.

Thus, the burden shifts to the opposing party to make a *prima facie* showing of the existence of a triable issue of material fact as to these causes of action.

The court does find that the Defense has met its burden.

The Defense points to the deficiencies in the declaration of Mr. Gill, both through Plaintiff's own Exhibit that was attached to the declaration, as well as the deposition of Mr. Gill, which was provided by the Defense in its opposition.

There appears to be a material dispute over whether there was ever any agreement between Defendant and Bank of America. First, no written agreement or application was ever provided by Plaintiff.

Second, and more importantly, though customer agreement statements were provided in Plaintiff's Exhibit One, attached to Mr. Gill's Declaration, there is a material dispute over whether Plaintiff provided these to Defendant.

Mr. Gill states in his Declaration that the custom and practice of Wells Fargo was to mail these agreements to consumers after they submit a written application. Plaintiff has provided no evidence of an application by Defendant. And, even assuming it were true that Defendant did submit an application, Mr. Gill later admits in his deposition that he has no knowledge of the process by which these cardholder agreements are sent to consumers, and further admits he knows nothing about how or whether any of these particular agreements, such as the one sent to Defendant, are copied or saved. Though he testifies in his deposition that the agreement attached to his declaration was in fact the one sent to Defendant in 2013, when she allegedly opened the account, the agreements don't bear any account information; there is no internally consistent pagination system to correspond it with any of the billing statements in 2013 that were addressed to Defendant; and, even if there was some logical connection between the agreement in the Exhibit and the 2013 billing statements, the 2013 billing statements were for an entirely different account number. No explanation has been provided by Plaintiff for this discrepancy.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.
2. Defense to prepare the order after hearing.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

6. 9:00 AM CASE NUMBER: L25-01138
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STACEY SMITH
*HEARING ON MOTION IN RE: MTN TO ENTER JUDGMENT PURSUANT TO STIPULATION FILED BY
PLN ON 11/12/25
FILED BY:
TENTATIVE RULING:

Background

Plaintiff filed a motion to Set Aside Notice of Settlement and enter judgment pursuant to stipulation. The Motion and its additional documents were filed in a timely manner.

This Motion is unopposed, and mail service was completed at the address where the Defendant was personally served with the Complaint.